

HOUSE No. 1994

The Commonwealth of Massachusetts

PRESENTED BY:

Priscila S. Sousa and Manny Cruz

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act protecting tenants from retaliation and coercion.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Priscila S. Sousa</i>	<i>6th Middlesex</i>	<i>1/17/2025</i>
<i>Manny Cruz</i>	<i>7th Essex</i>	<i>1/17/2025</i>
<i>Carlos González</i>	<i>10th Hampden</i>	<i>2/24/2025</i>
<i>Samantha Montañó</i>	<i>15th Suffolk</i>	<i>6/25/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>1/28/2026</i>

HOUSE No. 1994

By Representatives Sousa of Framingham and Cruz of Salem, a petition (accompanied by bill, House, No. 1994) of Priscila S. Sousa, Manny Cruz and Carlos González relative to protecting tenants from retaliation and coercion by threat of disclosing immigration status. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act protecting tenants from retaliation and coercion.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 4 of chapter 151B of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by inserting after subsection 4A the following:-

3 4B: Except as otherwise provided in this section, a landlord shall not:

4 (1) Unless required by law or court order, threaten to disclose or actually disclose
5 information regarding or relating to the immigration or citizenship status of a tenant to any
6 person, entity, or any immigration or citizenship status of a tenant to any person, entity, or any
7 immigration or law enforcement agency with the intent of harassing or intimidating the tenant,
8 retaliation against the tenant for exercising his or her rights, or influencing the tenant to surrender
9 possession; or

10 (2) Unless required by law or court order, bring an action to recover possession of a
11 dwelling unit based solely or in part on the immigration or citizenship status of a tenant.

This section does not prohibit:

(3) A landlord from complying with any legal obligation under federal, state or local law, including, but not limited to, any legal obligation under any government program that provides for rent limitations or rental assistance to a qualified tenant or a subpoena, warrant, or other court order.

(4) A landlord from requesting information or documentation necessary to determine or verify the financial qualifications of a prospective tenant.

(5) A landlord from delivering to the tenant an oral or written notice regarding conduct by the tenant that violates, may violate, or has violated an applicable rental agreement, including the lease or any, rule, regulation, or law.

This section does not enlarge or diminish a landlord's right to terminate a tenancy pursuant to existing state or local law, nor does this act enlarge or diminish the ability of a unit of local government to regulate or enforce a prohibition against a landlord's harassment of a tenant.

Nothing in this section prevents a landlord from seeking to collect rent due under this lease agreement.

If a landlord engages in prohibited conduct described in subsections (1) and (2) of section 4B against a tenant, the tenant may bring a civil action to seek any one or more of the following remedies:

(6) actual damages, as reasonably determined by the court, for injury or loss suffered;

(7) a civil penalty in the amount not to exceed \$2,000 for each violation, payable to the tenant;

33 (8) reasonable attorney's fees and court costs; and

34 (9) other equitable relief as the court may deem appropriate and just.

35 The immigration or citizenship status of any person is irrelevant to any issue of liability
36 or remedy in a civil action involving a tenant's housing rights. In proceedings or discovery
37 undertaken in a civil action involving a tenant's housing rights. In proceedings or discovery
38 undertaken in a civil action involving a tenant's housing rights, no inquiry shall be permitted into
39 the tenant's immigration or citizenship status, except if:

40 (10) the claims or defenses raised by the tenant place the person's immigration or
41 citizenship status directly in contention; or

42 (11) the person seeking to make the inquiry demonstrates by clear and convincing
43 evidence that the inquiry is necessary in order to comply with the federal law.